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sought to be prosecuted against a State, without her consent, by one of her own citizens. . . .

“Manifestly, we cannot rest with a mere literal application of the words of §2 of Article III, or assume that the letter of the Eleventh Amendment exhausts the restrictions upon suits against non-consenting States. Behind the words of the constitutional provisions are postulates which limit and control. There is the essential postulate that the controversies, as contemplated, shall be found to be of a justiciable character. There is also the postulate that States of the Union, still possessing attributes of sovereignty, shall be immune from suits, without their consent, save where there has been a ‘surrender of this immunity in the plan of the convention.’” *Id.*, at 321–323 (citations and footnote omitted).

See *id.*, at 329–330; see also *Pennhurst*, 465 U. S., at 98 (“In short, the principle of sovereign immunity is a constitutional limitation on the federal judicial power established in Art. III”); *Ex parte New York*, 256 U. S., at 497 (“[T]he entire judicial power granted by the Constitution does not embrace authority to entertain a suit brought by private parties against a State without consent given . . .”). It is true that we have not had occasion previously to apply established Eleventh Amendment principles to the question whether Congress has the power to abrogate state sovereign immunity (save in *Union Gas*). But consideration of that question must proceed with fidelity to this century-old doctrine.

The dissent, to the contrary, disregards our case law in favor of a theory cobbled together from law review articles and its own version of historical events. The dissent cites not a single decision since *Hans* (other than *Union Gas*) that supports its view of state sovereign immunity, instead relying upon the now-discredited decision in *Chisholm v. Georgia*, 2 Dall. 419 (1793). See, *e. g.*, *post*, at 152, n. 47. Its undocumented and highly speculative extralegal explanation of

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the decision in *Hans* is a disservice to the Court's traditional method of adjudication. See *post*, at 120–123.

The dissent mischaracterizes the *Hans* opinion. That decision found its roots not solely in the common law of England, but in the much more fundamental “‘jurisprudence in all civilized nations.’” *Hans*, 134 U. S., at 17, quoting *Beers v. Arkansas*, 20 How. 527, 529 (1858); see also *The Federalist* No. 81, p. 487 (C. Rossiter ed. 1961) (A. Hamilton) (sovereign immunity “is the general sense and the general practice of mankind”). The dissent’s proposition that the common law of England, where adopted by the States, was open to change by the Legislature is wholly unexceptionable and largely beside the point: that common law provided the substantive rules of law rather than jurisdiction. Cf. *Monaco, supra*, at 323 (state sovereign immunity, like the requirement that there be a “justiciable” controversy, is a constitutionally grounded limit on federal jurisdiction). It also is noteworthy that the principle of state sovereign immunity stands distinct from other principles of the common law in that only the former prompted a specific constitutional amendment.

Hans—with a much closer vantage point than the dissent—recognized that the decision in *Chisholm* was contrary to the well-understood meaning of the Constitution. The dissent’s conclusion that the decision in *Chisholm* was “reasonable,” *post*, at 106, certainly would have struck the Framers of the Eleventh Amendment as quite odd: That decision created “such a shock of surprise that the Eleventh Amendment was at once proposed and adopted.” *Monaco, supra*, at 325. The dissent’s lengthy analysis of the text of the Eleventh Amendment is directed at a straw man—we long have recognized that blind reliance upon the text of the Eleventh Amendment is “‘to strain the Constitution and the law to a construction never imagined or dreamed of.’” *Monaco, supra*, at 326, quoting *Hans, supra*, at 15. The text dealt in terms only with the problem presented by the decision in *Chisholm*; in light of the fact that the federal courts did not

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have federal-question jurisdiction at the time the Amendment was passed (and would not have it until 1875), it seems unlikely that much thought was given to the prospect of federal-question jurisdiction over the States.

That same consideration causes the dissent's criticism of the views of Marshall, Madison, and Hamilton to ring hollow. The dissent cites statements made by those three influential Framers, the most natural reading of which would preclude all federal jurisdiction over an unconsenting State.¹² Struggling against this reading, however, the dissent finds significant the absence of any contention that sovereign immunity would affect the new federal-question jurisdiction. *Post*, at 142–150. But the lack of any statute vesting general federal-question jurisdiction in the federal courts until much later makes the dissent's demand for greater specificity about a then-dormant jurisdiction overly exacting.¹³

¹² We note here also that the dissent quotes selectively from the Framers' statements that it references. The dissent cites the following, for instance, as a statement made by Madison: "[T]he Constitution 'give[s] a citizen a right to be heard in the federal courts; and if a state should condescend to be a party, this court may take cognizance of it.'" *Post*, at 143 (opinion of SOUTER, J.). But that statement, perhaps ambiguous when read in isolation, was preceded by the following: "[J]urisdiction in controversies between a state and citizens of another state is much objected to, and perhaps without reason. It is not in the power of individuals to call any state into court. The only operation it can have, is that, if a state should wish to bring a suit against a citizen, it must be brought before the federal courts. It appears to me that this can have no operation but this:" See 3 J. Elliot, *Debates on the Federal Constitution* 533 (2d ed. 1836).

¹³ Although the absence of any discussion dealing with federal-question jurisdiction is therefore unremarkable, what is notably lacking in the Framers' statements is any mention of Congress' power to abrogate the States' immunity. The absence of any discussion of that power is particularly striking in light of the fact that the Framers virtually always were very specific about the exception to state sovereign immunity arising from a State's consent to suit. See, *e.g.*, *The Federalist* No. 81, pp. 487–488 (C. Rossiter ed. 1961) (A. Hamilton) ("It is inherent in the nature of sovereignty not to be amenable to the suit of an individual *with-*